

SUPREME COURT OF THE STATE OF NEW YORK  
NEW YORK COUNTY

MARCOS QUINONES,

Plaintiff,

-against-

THE CITY OF NEW YORK,  
DEPUTY INSPECTOR STEPHEN  
SPATARO, SEARGENT THOMAS  
DONEGAN, SHIELD NO. 2086,  
AND JOHN AND JANE DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates New York County  
as place of venue

**SUMMONS**

The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: September 7, 2022

Briarcliff Manor, New York

Yours, etc.,

**ELEFTERAKIS, ELEFTERAKIS & PANEK**

By: \_\_\_\_\_

**Gabriel P. Harvis, Esq.,**

*Attorneys for Plaintiff*

80 Pine Street, 38<sup>th</sup> Floor

New York, New York 10005

(212) 532-1116

TO:

Defendant:

CITY OF NEW YORK

100 Church Street

New York, New York 10007

Deputy Inspector Stephen Spataro

NYPD 6<sup>th</sup> Precinct

233 West 10th Street

New York, NY, 10014

SERGEANT THOMAS DONEGAN, SHIELD NO. 2086

NYPD 5<sup>TH</sup> Precinct

19 Elizabeth Street

New York, NY, 10013

**Failure to respond will result in a judgment against you by default and interest from June 5, 2021.**

SUPREME COURT OF THE STATE OF NEW YORK  
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MARCOS QUINONES,

Plaintiff,

-against-

THE CITY OF NEW YORK,  
DEPUTY INSPECTOR STEPHEN  
SPATARO, SEARGENT THOMAS  
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**VERIFIED COMPLAINT**

Plaintiff Marcos Quinones, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, complaining of the defendants, respectfully alleges:

**JURISDICTION**

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the laws of the State of New York and 42 U.S.C. § 1983.
3. Jurisdiction is conferred by the laws of the State of New York.
4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
- b. the time when, place where, and manner in which the claim arose; and
- c. the items of damages and injuries sustained.

5. By stipulation dated July 28, 2022, the City of New York consented to plaintiff filing an amended notice of claim and the commencement of this action.

6. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

7. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff on or about May 9, 2022.

8. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

### PARTIES

9. Plaintiff is a resident of the State of New York.

10. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD

personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. The individual defendants were, at all relevant times, employees of the NYPD. In their interactions with plaintiff these defendants were acting in the capacity of agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. These defendants are sued in their individual capacities and as employees of defendant City.

12. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City.

13. At all times here mentioned, the individual defendants were acting under color of state law.

### **STATEMENT OF FACTS**

14. On the evening of June 5, 2021, Plaintiff was working as a credentialed journalist covering street protests at Washington Square Park in downtown Manhattan.

15. At approximately 11:00 p.m., Plaintiff was standing in front of 208 Thompson Street with his camera in his hand and his press badge around his neck when

an NYPD Captain, Defendant Stephen Spataro (now a deputy inspector), approached Plaintiff and, without cause or provocation, pushed him with a baton.

16. Defendant Spataro then swung his baton, aiming for Plaintiff's head.

17. As Plaintiff attempted to escape the assault, Defendant Spataro struck him on his shoulders and his back with his baton, seriously injuring Plaintiff. Plaintiff's camera was also damaged.

18. Video footage of the incident can be accessed at:  
<https://tinyurl.com/quinones-video>.

19. Even though Plaintiff had done nothing wrong and there was no arguable probable cause to charge him with any crime, Plaintiff was arrested on July 6, 2021, taken to the 6th Precinct, held for several hours and issued a desk appearance ticket.

20. The following day, Defendant Thomas Donegan, (then a detective with Shield No. 6625), swore out a criminal complaint citing allegations of Defendant Spataro and charging Plaintiff with attempted grand larceny in the fourth degree and second-degree obstruction of governmental administration in connection with the events of June 5, 2021.

21. Plaintiff was compelled to retain criminal defense counsel and appear for an arraignment on July 26, 2021. He pleaded not guilty.

22. On November 1, 2021, the criminal case against Plaintiff terminated in his favor and was dismissed.

23. All aforementioned conduct was committed by the City of New York, its agents, servants or employees, while acting in the scope of their employment. The City of New York, by and through its agents, servants and/or employees maliciously prosecuted the claimant in that they knowingly falsely filled out police reports to prosecute Plaintiff for crimes which they knew he did not commit. The City of New York, by and through its agents, servants and/or employees caused Plaintiff emotional injuries as a result of New York City police officers negligently and intentionally inflicting emotional distress on Plaintiff. The City of New York negligently hired, retained, trained and supervised the officers. These officers deprived Plaintiff of his constitutional, civil and common law rights. The City of New York is vicariously liable for these acts because the City employees were acting within the scope of their employment as New York City police officers when they committed their unlawful acts.

24. As a result, plaintiff suffered emotional and physical injuries, pain, loss of freedom, loss of reputation, property damage, attorney's fees, humiliation, diminished earning capacity and other damages.

**FIRST CLAIM**  
**Assault & Battery**

25. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

26. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

27. Defendant CITY OF NEW YORK, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

28. By reason of the assault and battery of plaintiff, plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

29. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein alleged.

**SECOND CLAIM**  
**Unreasonable Force**

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

32. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.



35. Defendant CITY OF NEW YORK, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

36. By reason of the assault and battery of plaintiff, plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower Courts that would otherwise have jurisdiction.

37. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages alleged herein.

### **THIRD CLAIM**

#### **False Arrest**

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

40. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

### **FOURTH CLAIM**

#### **State Law False Imprisonment and False Arrest**

41. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

42. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning him.

43. Plaintiff was conscious of his confinement.

44. Plaintiff did not consent to his confinement.

45. Plaintiff's confinement was not otherwise privileged.

46. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein alleged.

**FIFTH CLAIM**  
**§ 1983 Malicious Prosecution**

48. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

49. By their conduct, as described herein, the individual defendants are liable to plaintiff for maliciously prosecuting him.

50. Defendants initiated and continued the prosecution of plaintiff in the absence of probable cause and with actual malice.

51. The criminal charges against plaintiff were favorably terminated.

52. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

53. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein alleged.

SIXTH CLAIM

## State Law Malicious Prosecution

54. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

55. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

56. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

57. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

58. All charges were terminated in plaintiff's favor.

59. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

**SEVENTH CLAIM****Denial of Constitutional Right to Fair Trial**

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
62. The individual defendants created false evidence against plaintiff.
63. The individual defendants forwarded false evidence to prosecutors in the NEW YORK County District Attorney's office.
64. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.
65. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**EIGHTH CLAIM****Negligence; Negligent Hiring/Training/Retention**

66. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
67. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

68. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

69. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

70. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

71. Upon information and belief, defendant City's negligence caused plaintiff's injuries.

72. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

### **NINTH CLAIM**

#### **Negligent or Intentional Infliction of Emotional Distress**

73. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

74. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

75. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

76. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

77. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

#### TENTH CLAIM

##### **Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

78. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

79. The acts of the individual defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

80. The acts of the individual defendants caused plaintiff to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and

seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

81. The individual defendants, while in uniform, unlawfully seized plaintiff.

82. By reason of the acts and omissions by the individual defendants described above, plaintiff has endured physical and emotional injuries and were otherwise damaged and injured.

### **ELEVENTH CLAIM**

#### **Individual Defendant Officers' Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

83. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

84. The acts of the individual defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

85. The individual defendants had a duty to protect plaintiff from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

86. The individual defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's AC 8-802 right against unreasonable search

and seizure had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in his presence by other officers.

87. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in his duty to intervene to protect plaintiff from violation of his rights.

88. By reason of the acts and omissions by the individual defendants described above, plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

#### **TWELFTH CLAIM**

#### **City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

89. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

90. The individual defendants are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

91. The City of New York, as the employer of the covered individual defendants, is liable to the plaintiff for the wrongdoing of the covered individual defendants.

92. The acts of the individual defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.



93. The acts of the individual defendants caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

94. The individual defendants, while in uniform, unlawfully seized plaintiff in the 115<sup>th</sup> Precinct.

95. By reason of the acts and omissions by defendants described above, plaintiff has endured physical and emotional injuries and were otherwise damaged and injured.

**THIRTEENTH CLAIM**

**City-Employer's Liability for Defendant Officer's Failure to Intervene in  
Violation of Plaintiff's AC 8-802 Rights**

96. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

97. The individual defendants are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

98. The City of New York, as the employer of the individual defendants, is liable to plaintiff for the wrongdoing of the covered individual defendants.

99. The acts of the individual defendants constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

100. The individual defendants had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

101. The individual defendants that did not physically touch plaintiff but were present when other officers violated plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in his presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from violation of his rights.

103. By reason of the acts and omissions by the individual defendants described above, plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

**FOURTEENTH CLAIM**  
**Malicious Abuse of Process**

104. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
105. The individual defendants issued legal process to place plaintiff under arrest.
106. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.
107. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.
108. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

**FIFTEENTH CLAIM**  
**First Amendment Retaliation**

109. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
110. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, the individual defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution. The individual defendants have violated plaintiff's First Amendment rights to speech by unlawfully denying his right to speak freely by

subjecting him to false arrest and excessive force to deter the exercise of his First Amendment rights. Defendants' actions were taken in retaliation for plaintiff's exercising his First Amendment rights.

111. As a consequence of the individual defendants' actions, plaintiff has suffered violations of his First and Fourteenth Amendment rights to free speech. Plaintiff has fear and apprehension that he will, again, be subject to similar unlawful acts by defendants done for the purpose of limiting and preventing his First Amendment-protected activities.

112. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, plaintiff demands that judgment, compensatory, exemplary and punitive damages, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs pursuant to 42 U.S.C. § 1988.

Dated: September 7, 2022  
Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By:  \_\_\_\_\_

**Gabriel P. Harvis, Esq.**  
80 Pine Street, 38<sup>th</sup> Floor  
New York, New York 10005  
(P)(212) 532-1116  
(F)(212) 532-1176

*Attorneys for plaintiff*

ATTORNEY'S VERIFICATION

STATE OF NEW YORK            )  
                                          ) SS:  
COUNTY OF WESTCHESTER        )

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

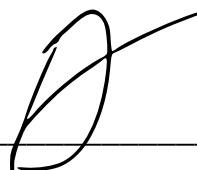
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or are presently outside the county in which your affiant maintains his law office or is presently located.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Briarcliff Manor, New York  
September 7, 2022

  
\_\_\_\_\_  
Gabriel P. Harvis, Esq.